IN THE SUPERIOR COURT OF JUDICATURE, HIGH COURT OF JUSTICE COMMERCIAL DIVISION "A" HELD AT SUNYANI ON FIRDAY THE 30TH DAY OF MAY, 2025 BEFORE HIS LORDSHIP JUSTICE HARRY ACHEAMPONG-OPOKU ESQ.

SUIT NO. CC6/003/2023

THE REPUBLIC

VRS.

OFORI CLEMENT

SUMMING – UP NOTES

Gentlemen and the ladies of the jury;

We have come to the end of the evidence and addresses by counsel.

It is now my duty to sum-up to you by drawing your attention to the evidence. The law involved and its application to the evidence you have so far heard. I remind you of your charge and duties explained to you earlier on.

As judges of fact, you should consider yourselves free from the comments or observations if any made by me in the course of this summing up, in that you are not

bound by them though I am within my right to make such observation. Your verdict must be based upon your own consideration of the evidence heard in this court and direction given on the law involved. You are therefore to disregard whatever you might have heard outside. Your verdict also must be by majority, this being a rape trial.

The general accepted principle of law in criminal trial is that the prosecution must discharge the burden of proving the Accused guilty of the charge to your satisfaction and must not leave you in any reasonable doubt at all.

There are however, certain exceptions to this principle that the burden of proof of the guilt of the Accused rests on the prosecution. So before you come to the end of your deliberations you must feel completely satisfied with the case for the prosecution that unanswered by the accused. You could convict him upon it, otherwise the verdict should be not guilty.

If upon considering of the entire evidence you entertain some reasonable doubt as to the Accused guilt, your verdict should also be not guilty.

Gentlemen and ladies of the jury. Quite apart from this you are to consider the story of the defence if you accept that story then your verdict should be that of NOT GUILTY. Even if you do not consider the defence as true, you must go further whether it is reasonably probable and if your observation lead you to that conclusion your verdict must be that of not guilty.

You must only convict when on consideration of the case as a whole you are not in any reasonable doubt as to the guilt of the accused. There is no burden on the Accused to prove his innocence and before you consider the defence you must first be satisfied that the prosecution has succeeded in taking the case outside the ambit of speculation and conjecture.

Gentlemen and the Ladies of jury, it will be wrong to ask yourselves if the accused did not do it then who did it, it is for the prosecution to prove that the accused caused the rape complained of.

Gentlemen and the Ladies of the jury, the Accused herein has been charged with the offence of rape as follows:

Charge sheet

(1) **Statement Of Offence** – Rape contrary to section 97 of the criminal offences Act, Act 29 of 1960.

(2) **Particulars of the offence** - Ofori Clement aged 18 years, farmer on or about the 9th day of September, 2022 at Amangoase near Techiman in the Bono East Region and within the jurisdiction of this court you had carnal knowledge of one Yaa Wenne Karime aged 21 years without her consent.

It must be noted that being charged with the said offence of rape the accused denied the said offence and pleaded not guilty.

Gentlemen and the ladies of the jury the brief facts of the case is that Yaa Wene Karime, the victim in the case lives with her husband at Amangoase a village near Tuobodum on 19th September, 2022 at about 7:00pm the victim's husband went out whilst the victim went to bed in the couple's matrimonial room. Whilst asleep, the victim sense that someone was having sexual intercourse with her. She realized that it was the accused Ofori Clement who was having sexual intercourse with her without her consent. The victim managed to push the accused away she then put on the light, held the accused's hand and managed to drag him out of the room she later informed her husband about the incident and together they lodged a complaint against the accused at the police station.

The accused admitted the offence in his investigation cautioned statement. He told police that he was a friend of the victim's husband. According to the accused he had gone to visit his friend when he found the victim sleeping alone and in the absence of the victim's husband and had sex with the victim. After investigation the accused was charged with rape and has been committed to stand trial before this court.

In essence these were facts in the case given by the prosecution. However, I warn you to be cautious in relying on the facts in your deliberations since facts are not evidence, indeed if need be you must restrict yourselves only to the entire evidence giving in this case.

Gentlemen and the ladies of the jury, section 97 of Act 29 of 1960 that is criminal and other offences Act states that;

"Whoever commits rape shall be guilty of first degree felony and shall be liable on conviction to imprisonment for a term of not less than 5 years and not more than 25 years".

The question then is what constitutes the offence of rape section 98 of criminal offences Act, 1960 (29) defines rape as;

"Carnal knowledge of a female of sixteen or above without her consent".

Carnal knowledge is the penetration of a woman's vagina by a man's penis it does not really matter how deep or little the penis went into the vagina so long as there was some penetration beyond what is known as brush work penetration would be deemed to have occurred and carnal knowledge taken to have been completed.

I will now deal with the law concerning the material elements of the offence that is what act or acts on the part of the accused person the prosecution must prove to have been done by him in order to constitute the offence with which he has been charged.

In order to succeed the prosecution must prove beyond doubt each of the following;

(i)That someone has had carnal knowledge of the victim in this case Yaa Wenne Karime.

(ii) That, someone is the accused person, in the instant case the accused person.

(iii) That Yaa Wenne Karime was carnally known against her wish in this case the accused had sex with Yaa Wenne Karime against her will or without her consent.

(iv) The victim Yaa Wnne Karime was a female above the age of sixteen.

The prosecution in an attempt to prove the guilt of the Accused Person in respect of the said charge of rape called two witnesses who were the police investigators in the case.

Evidence of PW1

Detective Corporal Alebina Adabogo who is police officer station at Tuobodum police station stated in his witness statement filed at the registry of this Honourable court on 21st March, 2024 which was adopted by this Honourable Court as his evidence in chief stated as follows;

On 11th September, 2022 the victim in this case Yaa Wenne Karime accompanied by her husband Banyor Yelibere came to the station. The victim Yaa Wenne Karime reported that the accused had sexual intercourse with her without her consent on 9th

September, 2022 at about 11:30pm whilst she was fast asleep in her room at Bonya Mangoase.

The victim stated that the accused who is a friend of her husband sneaked into her room in the absence of her husband and forcibly had sexual intercourse with her.

According to the witness upon receipt of the said complaint he and one Detective Corporal Asare led the victim and her husband to effect the arrest of the Accused Person at Bonya Mangoase.

That the victim identified the accused person to the police thereupon the Accused Person was arrested and upon his arrest he admitted the offence and pleaded for forgiveness.

Gentlemen and ladies of the jury PW1 continued his evidence and stated that the Accused led them to a single thatched room and pointed to a mat lying on the floor in the room. That the victim was lying on the said mat and was deeply asleep when he undressed her and had sexual intercourse with her without her consent that the accused pointed to the cloth and told the police that, that was the cloth on the victim when he had sex with her without her consent. They therefore took photographs of the mat and cloth at the scene for evidential; purposes. Accused was then brought to the station for further investigations.

Gentlemen and ladies of the jury in fine this was the evidence of PW1 however, during the cross-examination of PW1, These are the answers, he gave to the questions that were asked;

Q. You would agree with me that you and your colleague J.K. Asare gave Yaa Wenne Karime a police medical form to attend hospital.

A. My lord she was given medical form at the counter when she reported the incident.

Q. You would agree with me that she refused to return the medical form you gave to her to the police.

A. My lord I cannot speak to that because medical forms are returned to the investigator in charge of the case.

Q. But you assisted in investigation when Yaa Wenne Karime reported the matter to police.

A. Yes, my lord I assisted in arresting the Accused Person to the police station for further investigations.

Q. The sex that the Accused had with victim was with her consent.

A. No, my lord.

Q. And because the sex was with the consent of the victim she never returned the medical Report to the police.

A. My lord, that is not so.

Q. You would agree with me that you were not there when accused had sex with the victim.

A. Yes, my lord.

Q. You would agree with me that the victim reported the matter to you on 11th September, 2022 two days after the sexual intercourse.

A. Yes, my lord.

Q. You would agree with me that the victim told you that on the 9th September, the father-in-law got to know the sexual intercourse between her and the accused.

A. The father-in-law got to know when the victim held the accused after and informed him.

Q. You would agree with me that you were not present when the victim allegedly informed the father-in-law.

A. Yes, my lord.

Q. I am therefore putting it to you that the father-in-law caught the victim and the accused having sex in the room of the victim.

A. My lord, I cannot speak to that.

Q. I am putting it to you that the accused person only admitted having sex with the victim but never admitted having raped her.

A. My lord that is not true.

Q. You would agree with me that what the victim told you are things that you never witnessed.

A. Yes, my lord.

After the end of cross-examination by the Accused counsel prosecution call it next witness, who was the investigating officer in the case, in the person of General Corporal Jeffery Titiati, who was PW 2 for the prosecution.

EVIDENCE OF PW2

Gentlemen and Ladies of the jury, the evidence of PW 2 was also the same as that of the evidence of PW1 except to say that it was detected that the victim's door had no lock from the inside which made it easier for the accused to sneak into the victim's room.

And that as part of his investigations he obtained investigation and charge caution statement from the accused which were tendered and admitted in evidence without any objection and marked as exhibits 'D' and 'E'.

That the Accused admitted having sexual intercourse with the victim without her consent and pleaded for leniency.

He also stated that the medical form issued to the victim by the police was never returned to the police by the victim.

Gentlemen and Ladies of the jury according to PW 2, after investigations he forwarded a duplicate docket to the office of the Attorney-General Sunyani for advice.

After this he was instructed to charge the Accused Person with rape, which he did and later the accused person was committed at the District Court Tuobodom to stand trial at the High Court.

Gentlemen and Ladies of the jury earlier on in his evidence PW 2 did tender exhibits of the photographs of the mat and cloth which were admitted in evidence without objection and marked as exhibits 'A' and 'B' and also according to the witness the actual cloth was also tendered and admitted and marked as exhibit 'C' at the end of PW 2 evidence he was cross-examined by the counsel for the Accused as follows;

Q. You have told the court that the victim failed to report back with endorse medical form is that correct.

A. Yes, my lord.

Q. You would therefore agree with me that there is no medical basis to support your charge that the victim had been raped.

A. That is true.

Q. I am putting it to you that the accused never had sexual intercourse with the victim without her consent.

A. That is not true.

Q. I am putting it to you that the accused never raped Yaa Wenne Karime on 9th September, 2022 at about 11:30pm.

A. He did.

After the cross-examination of PW 2, the prosecution closed it case.

Gentlemen and Ladies of the jury in reviewing the evidence of the witnesses called by the prosecution, it is clear that what they came to tell the court was information that they gathered in their investigation of the said rape case in fact in answer to question asked all that they told the court was that, what they told the court was what was told then by Yaa Wenne Karime the supposed victim of the raped that they told the court that they never witnessed the said rape.

In the instance their evidence in order to give it proper weight need to be corroborated. In deed it is very strange that the prosecution did not call Yaa Wenne Karime the

protagonist in this melodrama, who according to the witness she was raped, which the accused had denied. Furthermore there is no any medical Report indicating that Yaa Wenne Karime was carnally known on 9th September, 2022.

Although according to the witnesses the said Yaa Wenne Karime was given a police medical form to attend Hospital but she failed to return the said medical form to the police, the question is whether she did attend Hospital or not we cannot tell. Although prosecution tendered exhibits 'A', 'B' and 'C' these exhibits do not connect the accused to the said offence. Indeed there was no indication that semen were found on the mat, neither was Yaa Wenne Karime in court to confirm the ownership of exhibit 'A', 'B' and 'C'. Furthermore prosecution ought to have called the said father-in-law to confirm its story. In essence these are some of the corroborative evidence that the prosecution ought to have led furthermore it must be noted that corroboration of the prosecution's case can also come from the accused.

The question then is what corroboration is

Section 7 (1) Evidence Act, NRCD 323 of 1975 defines corroboration as;

"Consists of Evidence from which a reasonable inference can be drawn which confirms in material particular the evidence to be corroborated and connects the relevant person with a crime, claim or defence".

Gentlemen and Ladies of the jury, the view held by leading authorities in common law such as professor Archibold is that in sexual offences corroboration of the evidence of the female is not in law essential it is nevertheless, desirable in practice and the court is expected to look for such corroboration and to warn itself or the jury of the danger of acting on uncorroborated evidence of the female alleged to have carnally known by the accused.

Nevertheless in Ghana the law on corroboration is that corroboration is not necessary to prove a fact unless expressly required by statute.

In fact section 7(3) of the Evidence Act, (NRCD 323) of 1975 states that;

"Unless otherwise provided by this or any other statute or any other enactment corroboration of admitted evidence is not necessary to sustain any finding of fact or verdict".

Gentlemen and Ladies of the jury what this means is that corroboration is required for evidence to be provided by law if it is not, the issue cannot arise this means that all rules on corroboration which are not covered by statutes in Ghana are not applicable. Therefore any rule on corroboration enunciated up by the common law are not applicable in Ghana.

Hence the outcome of a case in Ghana will depend more on credibility given to that evidence by court or jury than the necessity for corroboration.

Indeed throughout the criminal and other offences Act of 1960 (Act 29) there is no provision to the effect that evidence of corroboration is in law essential to support conviction in sexual offences except in the case of procuration under section 107 of Act 29.

However, section 7 (5) of the Evidence Act (NRCD 323) of 1975 allows at least one common law rule to be applied without expressly stating it.

Section 7 (5) of the Evidence Act, (NRCD 323) of 1975 states that;

"Nothing in this section shall preclude the court or any party from commenting on the danger of acting on uncorroborated evidence or commenting on the weight and credibility of admitted evidence or preclude the tribunal of fact from considering the weight and credibility of admitted evidence".

This section applies in particular when the court is considering evidence of

(a) Witnesses testifying in sexual offences like rape, defilement of a female or indecent assault etc.

In the light of this I would warn you of the danger of acting alone on the uncorroborated evidence of the witnesses called by the prosecution since there are a lot of gaps or potholes which need to be filled by the prosecution by the prosecution by way of corroborated evidence in other words you have to subject the said evidence the said prosecution witnesses gave to critical weight.

Nevertheless, these potholes or gaps in the prosecution witnesses or case has been filled by exhibits 'D' and 'E' which are investigation and charge caution statement of the accused tendered by the prosecution.

In fact a critical reading of the said statements would show that they are confession.

Gentlemen and Ladies of the jury the question is what is confession;

Confession is a statement by the suspect which when taken together with other facts and circumstances constitutes an admission or commission of the offence.

In fact section 120 (1) of the Evidence Act (NRCD 323) of 1975 defines confession as;

"In criminal action evidence of a hearsay statement made by an accused admitting matter which -;

(a) Constitutes; or

(b) Forms an essential part of; or

(c) Taken together with other information already disclosed by him is a basis for an inference".

Gentlemen and Ladies of the jury for the avoidance doubt I would like to produce the confession statements as contained in exhibit 'D' and 'E'.

First let us look at exhibit 'D' which was tendered and admitted in evidence without objection from the counsel or accused himself.

"……it is true that I had sex with the complainant (fiance) husband is my friend and I do sleep in their room some times. On 9th September, 2022 at about 10:00pm I decided to pass the night in my friend's house as I usually do sometimes. On entering my fried room I realized that he was not around I saw only the complainant sleeping with cloth covering half of her body. I took advantage of my friend's absence and I had sex with her. During penetration the complainant woke up and pushed me off her and she held my hand to her father-in-law's house to report the incident. The complainant and the in-law spoke Dargati language but I did not understand what they said and I was released to go home. On 10th September, 2022 I led the complainant and the husband to my parent at Akokonti but met my father's absence. I was home to day when the complainant led police to my house and was arrested…… I have committed a sin and want to be forgiven".

Exhibit 'E' also charge caution statement the accused stated as follows;

I am farmer and resides at Bonya Mangoase. It is true that I had sexual intercourse with the complainant without her consent. On 9th September, 2022 at about 10:00pm. I decided to pass the night in complainant's room the complainant husband is my friend and I do sleep in their room sometimes. On entering my friend's room I realized that he was not around. I only saw complainant sleeping with cloth covering half of her body. I took advantage of my friend's absence and had sex with her, during penetration the complainant woke up and pushed me off her and held

my hand and matched me to her father-in-law's house to report the incident. The complainant and the father spoke Dagarti language but I did not understand what they said I was released to go home. On 10th September, I led the complainant and the husband to my parent in Akokonti but met my father's absence. I was later arrested by police I am pleading for forgiveness".

Gentlemen and Ladies of the jury in essence these are the confession statements of the Accused.

Gentlemen and Ladies of the jury the law is that confession statement is classified as hearsay evidence as far as it takes place outside the court room being hearsay confession is generally not admissible nevertheless section 120 of Evidence Act, (NRCD 323) of 1975 makes confession admissible provided certain conditions are satisfied. Indeed section 120 (2) of the Evidence Act (NRCD 323) of 1975 states that;

"Evidence of a hearsay statement shall not be admissible under subsection (1) if the statement was made by the declarant while arrested, restricted or detained by the state unless the statement was made in the presence of independent witness

(3) The independent witness must be a person who –

(a) Can understand the language spoken by the accused.

(b) Can read and understand the language in which the statement is made: and where the statement is in writing the independent witness must be certify that

the statement was made voluntarily in his presence and that the contents were fully understood by him".

Gentlemen and Ladies of the jury I have critically subjected the said confession statements that is exhibits 'D' and 'E' into scrutiny and it is my considered opinion that it conforms to section 120 (2) and (3) of the Evidence Act, (NRCD 323). After all the said confession statements were tendered and admitted in evidence without objection by accused, in inference Accused would be deemed to have accepted the contents as contained in exhibit 'D' and 'E' as his statements

In the famous case State Vrs. Otchere (1963)2 GLR 462, the Supreme Court of Ghana then sitting as special criminal session of the High Court. The said court held at holding 7 that;

"A confession made by an accused person in respect of a crime of which he is being tried is admissible against him provided it is shown by the prosecution that it was voluntarily made and that the accused was not induced to make it by any promise or favour or menaces or undue terrors"

Gentlemen and Ladies of the jury, the law in Ghana is that confession statement tendered and admitted in evidence without objection alone can sustain conviction without any further proof. Se the practice note Supreme Court (1961) 1 GLR 626 in the case of The **State Vrs. Mawuko Aholo**, where it was held that;

"Conviction can quite properly be based on the evidence of a confession by the prisoner and such evidence is sufficient as long as the trial judge, as in this case, enquired most carefully into the circumstances in which the alleged confession was made and was satisfied of it genuineness".

Also in the case of The State Vrs. Otchere quoted supra at holding 7 the Supreme Court of Ghana held that;

A confession made by an accused person of a commission of a crime is sufficient to sustain conviction without any independent proof of the offence".

Gentlemen and Ladies of the jury, it is clear that Exhibit 'D' and 'E' tendered by the prosecution is enough alone to sustain conviction of the accused.

It is also clear that the said Exhibit 'D' and 'E' is corroborative enough to fill the gaps and potholes in the prosecution case.

Nevertheless, I have to inform you that although confession statement will require no further proof of its contents before it will be relied upon to that extent confession statements, as a variants of admissions, constitutes one of the matters which require no proof.

However, the rule is that admissibility is one thing and the weight to be attached to the confession statement is another thing. Gentlemen and Ladies of the jury, it is therefore your duty to decide on the weight to be attached to that evidence. In effect

although confession statement is admitted in evidence it is your duty to decide to believe or disbelieve it while considering your verdict.

Finally, accused in his evidence in court departed from his earlier confession statements that he had made that is exhibits 'D' and 'E'. Although he admitted having sex with Yaa Wenne Karime but was consensual sex, that is he had sexual intercourse with Yaa Wenne Karime with her consent.

In his evidence-in-chief as can be verified from his witness statement that he filed at the Registry of this court on 20th January, 2025 stated as follows;

"That it is never correct that I have raped Yaa Wenne Karime. I know her and on the 9th September 2022 11:30pm I did not have sex with her whiles she was sleeping and that Yaa Wenne Karime is not married even though. She has a boyfriend who is my friend. That Yaa Wenne Karime informed me that she is interested in me and she invited me to her house on so many occasions. That on the day of September, 2022 I visited her in the house when I got to the house her boyfriend was not around and she agreed and had sex with me".

When I got to the room she was sleeping and I woke her up had chat with her before having sex. At all-time material Yaa Wenne Karime was aware that I was the one that she was having sex with. It was after having the sex with and the father of the

boyfriend got to know of it, that she claimed that I have raped her which claim was false hence her inability to come to court to testify.

Gentlemen and Ladies of the jury indeed this is the short evidence of the accused, before I proceed further I have to draw your attention to the law that it is a good defence for any person charged with the rape that the female gave her consent to the sexual act. The prosecution must therefore prove absence of consent on the part of a female allegedly to have been ravished.

It is clear that the accused person has raised a defence he had consensual sex with the victim Yaa Wenne Karime that is there was consent by Yaa Wenne Karime, who had expressed interest in him.

However, the question is whether this defence is true or sham, I will at appropriate time explain to you what the law says about this defence raised by the accused vis-à-vis exhibits 'D' and 'E' accused confession statements.

In fact answers given by the Accused in respect of question asks indicated that the accused had sex with the said Yaa Wenne Karime but raised a defence of consent.

Q. And Mr Ofori on 9th September, 2022 at 10:00pm you decided to visit Nuah your friend is that not the case.

A. Yes, my lord.

Q. And upon getting on Nuah's house he was not at home is that not the case?

A. Yes, my lord.

Q. And in his absence you saw Yaa Wenne Karime lying on her mat sleeping.

A. I woke her up.

Q. Ofori Clement on the 9th September, 2022 at 10:00pm Yaa Wenne Karime was fast asleep when you got to the room.

A. Yes, she was fast asleep but I woke her up.

Q. You never woke her up.

A. I woke her up.

Q. Rather you took advantage of her sleepy state undress her and had sex with her without her consent.

A. I woke her up and she consented before I had sex with her.

Q. It is because Yaa Wenne Karime did not consent to the sexual intercourse she reported you to her father-in-law and later to the police

A. Her father-in-law came to see us that is why Yaa Wenne Karime told her boyfriend.

Q. Because you had sexual intercourse with Yaa Wenne Karime without her consent you pleaded to be forgiven and to be shone mercy.

A. When her father-in-law came to see I beg him.

Gentlemen and Ladies of the jury, the question is in view of answers given in cross-examination and the evidence in chief before this Honourable Court vis-à-vis Exhibits 'D' and 'E', it was clear to me that the Accused credibility was shaken.

Indeed I will invite you to consider seriously the credibility of the Accused Person. Section 80 (1) of Evidence Act (NRCD 323) states that;

"Except as otherwise provided by the Decree the court or jury may in determining the credibility of a witness consider any matter that is relevant to prove or disprove the truthfulness of his testimony at the trial".

(2) Matters which may be relevant to the determination of the credibility of the witness include but not limited to the following

(a) The demeanor of the witness.

(b) The substance of the testimony

(c) The existence or non-existence of any fact testified to by the witness.

(d) The capacity and opportunity of the witness to perceive recollect or relate to matter about which he testified.

(e) The existence or nonexistence of bias, interest or other motive.

(f) Character of the witness as to traits of honesty or truthfulness of their statement or conduct which is consistent or inconsistent with testimony of the witness at the trial.

(g) Statement of the witness admitting untruthfulness or asserting truthfulness.

Gentlemen and Ladies our concern is (g) that is a statement or conduct of the witness which is inconsistent with his testimony at the trial.

Indeed a critical look at the evidence of the accused in this court would show that his evidence in this court given on oath was a complete departure from the statement he gave to the police culminating in making of Exhibit 'D' and 'E' is inconsistent of the testimony of the witness in the instance the accused on oath.

Gentlemen and Ladies of the jury the law is that where evidence in court is in conflict with his previous written statement the court would treat the credibility of such a witness as not credible witness.

In the case of state Vrs. Otchere (1963) 2GLR 462, the court held that;

"A witness whose evidence on oath is contradictory of a previous statement made by him whether sworn on oath or unsworn is not worthy of credit and his evidence cannot therefore be regarded as being of any importance in the light of

his previous contradictory statement unless he is able to give reasonable explanation for the contradiction".

Also in **Bour** Vrs. **The state** – it was stated that:

"Where a witness has previously said or written something contrary to what he testifies to in court his evidence should not be given weight".

And finally in the **Akowuah** Vrs. **COP** (1963) 2 GLR, it was also held that where a person's statement to the police is at variance with, his evidence in court such evidence should be negligible. However, whether credence should be given should be left to the discretion of the court, in this case the court explained the word negligible as 'need not to be regarded'.

From the above analysis of the law, it is clear that the so called defence raised by the Accused in his evidence on oath in this court was a sham and after thought and need not be given any weight.

Gentlemen and the Ladies of the jury, you are judges of fact, I have explained the laws to you, it is your duty to scrutinize the facts to find, whether total evidence adduced at the trial taking into consideration the case of the prosecution and the defence. Prosecution and has been able to prove the guilt of the accused beyond reasonable doubt however, if you find any doubt in the prosecution case it must be resolved in favour of the accused and return verdict of not guilty.

Gentlemen and Ladies of the jury, you many now retire to consider your verdict. You are entitled to come back for further directions if you so desire. Your verdict must be by majority.

IN THE SUPERIOR COURT OF JUDICATURE, HIGH COURT OF JUSTICE COMMERCIAL DIVISION "A" HELD AT SUNYANI ON FIRDAY THE 30TH DAY OF MAY, 2025 BEFORE HIS LORDSHIP JUSTICE HARRY ACHEAMPONG-OPOKU ESQ.

SUIT NO. CC6/003/2023

THE REPUBLIC

VRS.

OFORI CLEMENT

JUDGEMENT

Summing up started at 9:00am and ended at 10:15am

10:15am jurors retire to chambers

10:55am jurors return from chambers to announce their verdict.

Foreman – jury find the Accused not guilty.

BY COURT: In view of the jury returning a verdict of not guilty. I find the Accused not guilty. I therefore Acquit and discharge the Accused.

(SGD)

…….

JUSTICE HARRY ACHEAMPONG-OPOKU

(*JUSTICE OF THE HIGH COURT)*

Counsel:

FREMPONG BOAMA FOR THE ACCUSED

VIVIAN YAYRA NTI BOADU FOR THE REPUBLIC